

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2505340	LEE VS OMNI RANCHO LAS PALMAS, LLC	MOTION TO STRIKE DEMURRER ON 2ND AMENDED COMPLAINT OF CASSANDRA J LEE

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Civ. Proc. Code, § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe emotional distress." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Facts regarding the nature, extent or duration of the alleged emotional distress should be pled in the complaint to support severe emotional distress. (*Ibid.*) "[W]hether conduct is outrageous is 'usually a question of fact' ... [However] many cases have dismissed intentional infliction of emotional distress cases on demurrer, concluding that the facts alleged do not amount to outrageous conduct as a matter of law." (*Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235.)

3rd Cause of Action IIED:

Plaintiff's second amended complaint adds language identifying specific employees that are alleged to have ratified the conduct. (SAC ¶ 47.) Plaintiffs have alleged extreme and outrageous conduct, that Defendants had actual and constructive notice of the hotel rooms, including the subject room 2316, as numerous guests have complained about bed bugs. (SAC ¶¶36, 129.) Plaintiffs suffered hundreds of bed bug bites over their bodies which demonstrated a long-standing infestation. (SAC ¶40.) Plaintiffs contend the infestation occurred prior to their stay and has been a recurring problem as demonstrated through online reviews and prior lawsuits. (SAC ¶¶126-127.) Defendant argues that the prior *Mantzian* lawsuit involved an infestation prior to 2024. (SAC ¶127.) However, the additional facts added to the second amended complaint fail to show again, that Defendants knew that room 2316 was infested. Nothing to indicate Defendants acted with intent, or reckless disregard in assigning that specific room. Plaintiffs refer to consumer reviews, guest complaints and inspection reports and findings but fail to show how these were related to the room that Plaintiffs occupied. The reference

to the *Mantzian* lawsuit was a claim of infestation from 2021. The SAC does not sufficiently plead facts to support intentional infliction of emotional distress.

5th Cause of Action Fraudulent Concealment:

Concealment requires: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.) As concealment is a species of fraud, it must also be pled with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.) Less specificity is required where the defendant necessarily possesses the information. (*Committee On Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216.) Furthermore, as noted by one court, it is not practical to allege facts showing how, when and by what means something did not happen. (*Alfaro v. Community Housing Improvement System Planning Assn.* (2009) 171 Cal.App.4th 1356, 1384.) However, if the concealment is based on providing false or incomplete statements, the pleading must at least set forth the substance of the statements at issue. (*Ibid.*)

Plaintiffs plead Defendants had notice of the bed bugs in the room (SAC ¶153-154) and Defendants failed to disclose the bed bug infestation (SAC ¶152). Again, as with intentional interference with emotional distress, Plaintiffs allegations of knowledge are insufficient. As with the allegations for intentional inflection of emotional distress, the cause of action for fraudulent concealment refers to complaints, inspection findings, pest control history and the *Mantzian* lawsuit. No facts were submitted showing that any of these forms of notice to Defendants related to Room 2316, nearby rooms, or even that particular building in which 2316 is located. No facts are alleged to show that Defendants intentionally concealed or suppressed that room 2316 was infested with bed bugs, with the intent to defraud.

Demurrer as to the 3rd and 5th Causes of Action for the Second Amended Complaint SUSTAINED without leave to amend.

*Defendant’s Motion labelled the IIED claim as the 4th Cause of Action and the Fraudulent Concealment claim as the 6th Cause of Action in their opposition.

Case Management Conference continued to 12.17.26. The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.